CLEARVIEW AI AND LAW ENFORCEMENT FACIAL RECOGNITION

A Case Study

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1 Introduction

Clearview AI is a United States-based technology company that, since 2017, has been secretly scraping billions of photographs from publicly accessible websites—including Facebook, Instagram, LinkedIn, Twitter, and YouTube—to build one of the largest biometric facial recognition databases in history. By 2024, the database reportedly contained over 50 billion facial images, providing law enforcement agencies across the United States and several other countries with the ability to identify individuals from a single photograph within seconds.

The fundamental ethical controversy surrounding Clearview AI is not merely that facial recognition technology is powerful, but that the data it relies upon was collected without the knowledge, consent, or control of the individuals photographed. Billions of people who uploaded images to social platforms never agreed to have their biometric data harvested, stored indefinitely, and made available to governments and law enforcement agencies for surveillance purposes.

This case represents a landmark collision between technological capability, data ethics, privacy rights, and regulatory accountability. What makes it a particularly instructive case study for data ethics is the range of violations it embodies: unauthorized mass data collection, misuse of sensitive biometric data, absence of transparency, algorithmic bias against minority communities, lack of accountability mechanisms, and the systemic risks posed when private corporations supply surveillance infrastructure to the state—all without any meaningful legal oversight or public debate.

2 Background

2.1 The Organization and Its Technology

Clearview AI was co-founded by Hoan Ton-That and Richard Schwartz. The company's core product is a facial recognition application that allows users—primarily law enforcement officers—to upload a photograph of an unknown individual and instantly receive a list

of matching images from Clearview's database, along with the source URLs where those images were originally found. This effectively means that any person who has ever appeared in a publicly indexed online photograph can potentially be identified and their movements tracked.

The company marketed its tool to police departments as a powerful crime-solving resource, claiming it could help identify suspects in cases ranging from shoplifting to terrorism. By 2020, it was reported that over 600 law enforcement agencies in the United States alone had used the technology, including the FBI, the Department of Homeland Security, and hundreds of local police departments.

2.2 The Data Collection Method

Clearview AI's database was built entirely through automated web scraping—bots that continuously crawl publicly accessible websites and download photographs along with associated metadata such as names, locations, and usernames. The company argued this practice was legal because the images were publicly available. However, this argument fundamentally ignores the ethical distinction between data being *technically accessible* and data being *ethically available* for collection and commercial exploitation at scale.

Critically, Clearview ignored the Terms of Service of all major platforms, each of which explicitly prohibits automated scraping of their data. Twitter, Google, Facebook, and YouTube all sent cease-and-desist letters to Clearview after the company's practices became public in early 2020 following an investigative report by *The New York Times*.

3 Problem Description

The Clearview AI case presents a multi-layered ethical and legal crisis rooted in the following core failures:

- **Unauthorized Biometric Data Collection:** Clearview collected biometric facial recognition data—among the most sensitive categories of personal information—from billions of individuals globally without their knowledge or consent.

- **No Transparency or Notice:** Affected individuals had no awareness that their

images were being harvested, stored in a commercial database, and made available to government agencies for surveillance purposes.

- **Absence of Opt-Out Mechanisms:** Until legal action forced limited changes, individuals had no practical way to remove their data from the database or prevent further collection.

- **Algorithmic Bias and Misidentification Risks:** Studies by MIT Media Lab and NIST demonstrated that facial recognition systems exhibit significantly higher error rates for women and people of colour—raising the risk of wrongful identification, false arrests, and systemic discrimination.

- **Commercial Surveillance Infrastructure Sold to the State:** A private, unregulated company supplying mass biometric surveillance capability to governments bypasses the democratic and legal safeguards that would normally govern state surveillance activities.

- **Data Security Vulnerabilities:** In February 2020, Clearview AI suffered a data breach in which its entire client list—including all law enforcement agencies using the system—was stolen, exposing both the scale of operations and the inadequacy of its security practices.

4 Analysis: Data Ethics Principles Violated

The following table analyses the Clearview AI case against the core principles of Data Ethics as outlined in Module 1 of this course, covering privacy, transparency, fairness and bias, accountability, security, data quality, and ethical data collection.

Privacy	Individuals have the right to control their personal and biometric data. Data collectors must obtain informed consent before processing sensitive personal data.	Clearview scraped and stored biometric data from billions of individuals without any form of consent, notice, or opt-out mechanism. Biometric facial data—a permanent identifier—was collected purely for commercial gain and sold to state actors without the knowledge of those affected.
Transparency	Data collectors must be open about how data is gathered, stored, and used. Individuals must have access to information about data practices.	Clearview operated in complete secrecy for over two years. The public only became aware of the company's practices through investigative journalism in January 2020. The company refused to disclose which agencies it served or how the technology was being used in practice.
Fairness & Bias	Data systems must not discriminate. Algorithmic tools should be tested for demographic bias to prevent disproportionate harm to vulnerable groups.	Facial recognition technology has documented error rates up to 34% higher for darker-skinned women compared to lighter-skinned men (MIT Media Lab, 2018). Deploying such technology for law enforcement without bias testing creates direct risk of wrongful arrest and systemic discrimination against minority communities.

Accountability	Organizations must accept responsibility for how their data systems affect individuals and society. Mechanisms must exist for redress when harm occurs.	Clearview denied accountability at every turn, claiming no legal obligation existed because images were 'public.' No redress mechanism was offered to individuals harmed by false matches. The company attempted to settle lawsuits with minimal restrictions rather than transforming its practices fundamentally.
Security	Organizations must implement robust technical and organizational measures to protect data from unauthorized access, exfiltration, or misuse.	In February 2020, Clearview's entire client list was stolen in a data breach, exposing the identities of all law enforcement agencies using the system. This directly demonstrates inadequate data security for a company holding one of the world's most sensitive biometric databases.
Data Quality	Data used for automated decision-making must be accurate, up-to-date, and representative. Relying on poor-quality data for high-stakes decisions is unethical.	The scraped database includes outdated photographs, images of minors, misidentified individuals, and duplicates. Using such data for law enforcement identification without quality controls creates a direct and serious risk of wrongful identification.

Table 1: Data Ethics Principles and Analysis of Clearview AI's Violations

5 Consequences

5.1 For Affected Individuals (Data Subjects)

The individuals whose facial images were harvested face profound and largely irreversible consequences. Unlike a password that can be changed after a breach, a person's face is a permanent biometric identifier. Once enrolled in Clearview's database, an individual's movements, associations, and activities can potentially be tracked across any location equipped with cameras.

Documented cases of misidentification by facial recognition systems have already led to wrongful arrests in the United States, with known cases in Detroit, New Orleans, and New Jersey—all involving Black men wrongly identified by facial recognition tools used by local law enforcement.

5.2 For Clearview AI

Clearview has faced significant regulatory and legal consequences globally, summarized below:

- **United Kingdom:** The ICO fined Clearview £7.5 million and ordered deletion of all UK residents' data (2022).
- **France:** The CNIL issued a formal order to delete data and cease operations in France.
- **Italy:** The data protection authority imposed a fine of EUR 20 million.
- **Australia:** The Australian Information Commissioner found Clearview in breach of the Privacy Act and ordered deletion of Australian data.
- **United States:** The ACLU reached a landmark settlement in 2022 in Illinois, permanently banning Clearview from selling database access to private entities—the first legal restriction of its kind in the US.

5.3 For Law Enforcement and Democratic Accountability

The widespread use of Clearview by law enforcement without public knowledge, legislative authorization, or judicial oversight set a troubling precedent. It demonstrated how private technology companies can effectively enable state surveillance capabilities that would, if proposed openly, face intense democratic scrutiny and potential prohibition. The case sparked legislative action across multiple US states and renewed calls for federal facial recognition regulation.

5.4 For the Data Ethics Landscape

The Clearview case became a defining reference point in global debates about biometric data regulation. It catalyzed the introduction of biometric privacy laws in several US states, accelerated the EU's regulation of facial recognition in public spaces under the AI Act (2024), and fundamentally challenged the tech industry's assumption that publicly accessible data is ethically available for any use.

6 Actions Taken

The following actions were taken in response to the Clearview AI controversy:

- **Regulatory Investigations and Fines:** Data protection authorities in the UK, France, Italy, Australia, and Canada investigated Clearview and issued orders to stop processing data and delete records of residents within their jurisdictions.

- **ACLU v. Clearview AI (Illinois, 2020–2022):** Filed under the Illinois Biometric Information Privacy Act (BIPA), a landmark 2022 settlement permanently banned Clearview from selling database access to private businesses in the US and restricted services to law enforcement agencies only.

- **Platform Cease-and-Desist Actions:** Twitter, Google, Facebook, YouTube, and LinkedIn all sent cease-and-desist letters demanding Clearview stop scraping their platforms.

- **Legislative Responses:** Several US states introduced or passed bills regulating facial

recognition technology in public spaces. The EU AI Act (2024) classified real-time biometric surveillance systems as 'high risk' and prohibited many applications in public spaces.

- **Limited Corporate Reforms:** Clearview introduced an opt-out request mechanism (primarily to satisfy regulatory orders) and claims to have ceased offering services in certain jurisdictions. Critics argue these measures remain inadequate given the scale of the database.

7 Preventive Measures

To prevent similar ethical failures in future data science projects and organisational practices, the following measures are recommended:

- **Informed Consent as a Non-Negotiable Baseline:** Any system involving biometric data must obtain explicit, informed, and freely given consent from data subjects before collection or processing. 'Publicly accessible' does not mean 'ethically available for any use'.

- **Biometric Data Classification as Sensitive:** Organisations and regulators must recognise biometric data as inherently sensitive, warranting the highest level of protection. Collection must be demonstrably necessary for a legitimate purpose that cannot be achieved through less invasive means.

- **Algorithmic Bias Testing Before Deployment:** Any facial recognition system intended for use in high-stakes decisions—especially law enforcement—must undergo rigorous bias testing across demographic groups before deployment, with results published publicly and independently verified.

- **Independent Oversight of Law Enforcement Technology:** The procurement of surveillance technology by government agencies should require legislative authorization, judicial oversight, and public disclosure. Private companies should not supply mass surveillance infrastructure to the state without democratic accountability.

- **Platform-Level Enforcement Against Unauthorized Scraping:** Technology platforms must invest in robust anti-scraping defences and legal mechanisms to prevent unauthorized harvesting of user-generated content at scale.

- **Risk–Benefit Assessment for High-Risk Data Applications:** Before deploying any system with significant surveillance capability, a mandatory Data Protection Impact Assessment (DPIA)—or equivalent risk assessment—should evaluate potential harms to individuals and propose mitigation strategies.

- **Data Retention Limits for Biometric Systems:** Clear retention policies must define how long biometric data can be stored and mandate secure deletion when it is no longer necessary for the specified and consented purpose.

8 Conclusion

The Clearview AI case is not simply a story about a company that broke the rules—it is a cautionary tale about what happens when technological capability races far ahead of ethical frameworks, legal protections, and democratic oversight. In scraping billions of faces from the web and selling the resulting surveillance capability to governments and law enforcement agencies, Clearview AI violated virtually every foundational principle of data ethics: privacy, transparency, fairness, accountability, security, and ethical data collection.

The faces in Clearview's database belong to real people—people who can be wrongly arrested, surveilled, harassed, or discriminated against as a result of a system they never consented to and may not even know exists.

The lesson for the field of data science is unambiguous: technical capability does not confer ethical permission. The power to collect, process, and exploit data at scale brings with it a responsibility to ask not just "Can we do this?" but "Should we do this—and what harm might it cause?" Embedding ethical reasoning, privacy-by-design, and robust accountability mechanisms into data science practice is not a regulatory burden; it is a fundamental professional obligation.

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